A municipal corporation is a "person" within the meaning of that word as used in the Fourteenth Amendment.

The word "corporation" as used in certain statutes, includes a municipal corporation. *Loeb* v. *Columbia Township*, 179 U. S. 472, 486; *Andes* v. *Ely*, 158 U. S. 312; 1 Dillon on Mun. Corp., 4th ed., §§ 18, 19, 20; Mass. P. S., c. 3, § 3, cl. 16; Mass. R. L., c. 8, § 5, cl. 16; *Covington & L. Turnpike R. R. Co.* v. *Sandford*, 164 U. S. 578, 592; *Pembina Consol. Mining Co.* v. *Pennsylvania*, 125 U. S. 181.

The act of the Massachusetts legislature should not be construed to have abrogated the municipality's contract with the railroad company and this court can so hold notwithstanding the construction placed on the act by the state court.

Where the validity of the state statute is attacked upon the very ground that it was in conflict with the contract clause of the Federal Constitution this court examines *de novo* the meaning of the statute and places its own interpretation upon it. *McCullough* v. *Virginia*, 172 U. S. 102, 109; *Yick Wo* v. *Hopkins*, 118 U. S. 356; *Mobile & Ohio R. Co.* v. *Tennessee*, 153 U. S. 486; *Wilson* v. *Standefer*, 184 U. S. 399, and cases cited on p. 411. The legislative history of the act shows that it was not intended to abrogate the rights of the municipality.

*Mr. Bentley W. Warren* for defendant in error:

The board of aldermen of Worcester in imposing the so-called conditions, claimed by the city to amount to contracts, contained in the orders of location acted, so far as it was intrusted with any power in relation to the location and construction of the defendant's railway, not in the capacity of officers or representatives of the city of Worcester, but as public officers under authority delegated to them by the legislature. The city of Worcester, as a municipal corporation, had no power, whether acting by its board of aldermen, by its city government, or otherwise, with respect to street railway locations within its limits. Municipal corporations in Massachusetts possess only such powers and rights as are ex-